
Case	Title / Nature of Case
02:00 PM	
24-CIV-01474	MOHAN S CHEEMA VS. LUCID GROUP, USA, INC.
LINE 1	
MOHAN S. CHEEMA LUCID GROUP, USA, INC.	BENJAMIN DRAKE AMY MACLEAR

PLAINTIFF MOHAN CHEEMA'S MOTION FOR ATTORNEY'S FEES

TENTATIVE RULING:

The Motion of Plaintiff Mohan S. Cheema ("Plaintiff") for Attorneys' Fees is GRANTED IN PART.

Background

This is Plaintiff's second attorneys' fees motion. The court previously denied without prejudice Plaintiff's first attorneys' fees motion determining (among other deficiencies) that it could not evaluate the actual time reasonably incurred for this action based on Plaintiff's submitted evidence. (November 3, 2025 Minute Order.) The court denied Plaintiff's request for a 1.5 multiplier and also denied Defendant's request for a negative multiplier. (*Id.*)

In this second motion, Plaintiff seeks \$25,832 attorney's fees, along with (initially) a 1.3 multiplier, for a total of \$33,581.60. (Plaintiff's Notice of Motion.) However, Plaintiff acknowledges in reply that the court previously denied Plaintiff's request for a multiplier and asks the court to award fees instead of \$25,832. (Plaintiff's Reply, p. 9:17-18.)

Legal Standard

A buyer that prevails in an action under the Song-Beverly Act shall be allowed by the court to recover "attorney's fees based on actual time expended determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civil Code, § 1794, subd. (d).) The prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount. (*McKenzie v. Ford Motor Company* (2015) 238 Cal.App.4th 695, 703.) Trial courts have discretion in determining the value of the professional services rendered, and a fee award will not be disturbed on appeal unless the appellate court is convinced that it is clearly wrong. (*Id.*, at 703-704.)

A court assessing attorney fees begins with a lodestar figure based on the careful compilation of the time spent and reasonable hourly compensation of each attorney. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131-1132.) To determine "reasonable compensation," the court must carefully review the documentation of hours expended. (*Id.*, at p. 32.) Inefficient or duplicative efforts is not subject to compensation. (*Id.*) After the court determines a lodestar figure, it may be adjusted by the court based on a number of factors including "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award." (*Id.*)

The hourly rates are generally reasonable

The court previously denied without prejudice the motion for Plaintiff to address the qualifications of the attorneys and staff that worked on this case as well as their hourly rates. Plaintiff has now provided this information for the attorneys, paralegals and staff members. (Hensley Decl., pp. 4-6.) Plaintiff also claims that these hourly rates are reasonable based on a 2017-2018 attorney fee survey report. (Hensley Decl., Exh. D.) Defendant argues that in other cases, California courts have reduced the fees in a Song-Beverly action to as low as \$350 per hour, and that such a blended rate should apply here. However, four attorneys worked on this action with experience ranging from (ultimately) four years to up to twenty four years. The court declines to establish a blended rate. Defendant offers no other evidence as to what a reasonable hourly rate is based on the claimed years of experience. Thus, the court finds the claimed hourly rates are generally reasonable. However, Attorney Hensley was only barred for a few years, was new to the firm at the time this case began and does not describe any relevant Song-Beverly experience prior to joining the current firm. That, as well as a comparison of Attorney Hensley's rate(s) to those of the much more experienced attorneys and combined with the Court's understanding of reasonable rates, indicates a rate of \$400 per hour is more appropriate for Attorney Hensley (which the Court adopts), and the court reduces the requested fee accordingly by \$1500.

The time claimed warrants reductions

After reviewing the billing statements, Defendant's objections regarding the unreasonableness of the hours are well-taken.

This action was litigated (aside from attorney's fees issues) for approximately 3-4 months. Plaintiff filed this Complaint on March 6, 2024, and Defendant filed a motion to compel arbitration on April 17, 2024. Plaintiff did not oppose the motion to compel arbitration. Defendant served a section 998 offer on Plaintiff on June 3, 2024, and Plaintiff accepted on June 21, 2024. Therefore, much of the billing after Plaintiff accepted the section 998 offer is not reasonably claimed.

Romo's time - Defendant objects to time claimed for clerical tasks by General Manager Jennifer Romo on January 15, January 19, February 12, March 7 and March 8, 2024. The court agrees and reduces the fees by \$200.

Vague and/or duplicative billing – The court agrees that some of the entries are vague and/or appear duplicative. (See e.g., Hensley Decl., Exh. C, July 12 and 22, 2024 entries.) After reviewing the billing statements, the court reduces the fees by \$2,667.50 for this reason.

First attorneys' fees motion - Defendant objects because Plaintiff seeks \$7,022 fees for the 15.5 hours spent on the previously unsuccessful fees motion. Plaintiff also seeks 11.4 hours and \$5,700 for preparing this second motion. The court's prior Order ruled that a party is entitled to fees for drafting a fee motion. (See November 3, 2025 Order.) However, the court agrees that Defendant should not have to pay for the first motion when Plaintiff failed to submit proper evidence to support the requested fees. Therefore, the court reduces the fees by \$7,022. However, it finds Plaintiff is entitled to the requested fees for this second motion.

Fees for OSC for failure to timely file a dismissal after a conditional settlement – Defendant claims it prompted Plaintiff's counsel to timely file the notice of settlement, but Plaintiff did not do it. Instead, Plaintiff's counsel waited until May 2025 to file the first fees motion despite settlement of the case in June 2024. The court agrees with Defendant about reducing the fees for the multiple OSCs re dismissal that resulted in the additional, unnecessary fees. Accordingly, the court reduces the fees by \$1,550.

Based on the above, the court GRANTS Plaintiff attorneys' fees in the amount of \$12,892.50.

Plaintiff's and Defendant's requests for a multiplier are denied.

The court previously denied both Plaintiff's and Defendant's requests for a multiplier. These same requests for a multiplier arguably improperly seek reconsideration. No reconsideration motion has been filed and served, and neither party has presented new or different facts, circumstances or law to support reconsideration. (See Code Civ. Proc., § 1008.) Further, even if not improperly seeking reconsideration, the court finds no basis for a multiplier. These requests are DENIED.

02:00 PM

24-CIV-02662 ALEXANDER XUE VS. COSTCO WHOLESALE CORPORATION

LINE 2

ALEXANDER XUE
COSTCO WHOLESALE CORPORATION

PRO PER
ALECIA E. COTTON

DEFENDANT COSTCO WHOLESALE CORPORATION'S MOTION TO STRIKE AND ORDER FOR DISMISSAL

TENTATIVE RULING:

Defendant Costco Wholesale Corporation's unopposed motion to strike Plaintiff Alexander Xue's Second Amended Complaint ("SAC") is GRANTED.

Defendant's motion to dismiss this action under Code Civ. Proc. § 581(f)(2) is GRANTED.

Defendant's demurrer to Plaintiff's SAC is deemed MOOT.

On February 18, 2026, this Court issued an order sustaining Defendant's demurrer to Plaintiff's First Amended Complaint and granted Plaintiff "15 days from the service of notice of entry of this order to file and serve a Second Amended Complaint." (Order Sustaining Demurrer, February 18, 2026.) Defendant mailed notice of entry of the order to Plaintiff the following day, on February 19, 2026. Thus, Plaintiff's deadline to file an SAC was no later than March 11, 2026. Plaintiff filed the SAC on April 7, 2026.

A court may strike out all or any part of a pleading that is not in conformity "with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436, subd. (b).) A plaintiff's "failure to file an amended complaint within the time allowed by the court subject[s] any subsequently filed pleading to a motion to strike, either by defendants or the court's own motion." (*Leader v. Health Indus. Of Am., Inc.* (2001) 89 Cal.App.4th 603, 613.) "Indeed, by virtue of its inherent power to prevent abuse of its processes, a trial court may strike an amended complaint filed in disregard of established procedural processes, and may strike an amended pleading because no request for permission to amend was sought." (*Id.*)

"A trial court's determinations to deny leave to file a belated amended pleading under section 473, subdivision (a)(1), to strike a pleading under section 436, and to dismiss an action under section 581, subdivision (f)(2)" are discretionary decisions. (*Id.* at 612).

Here, there is no question that Plaintiff filed his SAC late, on April 7, 2026, roughly one month after the deadline set by the Court. Plaintiff did not seek further leave from the Court prior to filing the amended complaint or after. Plaintiff has not opposed Defendant's motion to strike the SAC or Defendant's demurrer to the SAC. Defendant has moved for an order striking the late-filed amended pleading via a noticed motion, as required under Cal. Rules of Court, rule 3.1320(i).

It is of note that on July 15, 2026 (long after his opposition was due) Plaintiff did appear *ex parte* seeking leave to file a Third Amended Complaint and claimed that his delay in filing the Second Amended Complaint was due to some sort of computer failure sometime in March. The Court denied *ex parte* relief. Plaintiff also filed an extremely untimely opposition to this motion (also on July 15, 2026). The
